

How to be a smarter apartment-hunter in NYC- Dec 2025

- Where am I looking? Trulia/Zillow, Craigslist, Listings Project, Streeteasy, FB groups such as Gypsy housing nyc; Spareroom.com, Realestate.org, possibly your employer especially large corporations like a university or a hospital; your mosque/church/synagogue, your choir, your CSA, community garden, your kid's school's parents chat work every connection
- Phipps, Bronx Pro, CCManagers, Lemle Wolff etc. are some of the large property management companies that post vacant apts . or general applications on their own websites.
- If you are targeting a neighborhood, consider talking to the brokers who are local and let them know you are looking. But of course, a broker's fee will apply: [Residential' Rights Guide | New York State Attorney General \(ny.gov\) Tenants](#)
- The NY Foundation for Senior Citizens runs a free Home Sharing Program that helps link adult "hosts" with extra private spaces in their homes or apartments with appropriate adult "guests" to share their space. Owner/leaseholder or guest must be age 60 or older. (212) 962-7559
- In addition to the HPD housing lotteries [NYC Housing Connect](#) there are also re-rentals [Find affordable Housing Re-rentals – HPD](#) . Also NYCHDC has rerentals [Re-Rentals | NYCHDC](#)
- Mitchell Lama open waiting lists: [ML-waiting-Lists-Status.pdf](#). This one is a pdf so look in the future for updated lists



Affordable units may be in boroughs or neighborhood with which you are not familiar. Look at bus or subway lines, not proximity to job “as the crow flies” if you commute



- Vet the apt.! **don't get scammed by someone who is not the actual owner. And don't ever use cash**
- [Is It A Rental Scam? Red Flags to Watch Out For \(usnews.com\)](https://www.usnews.com/storyline/rental-scams)
- Enter the address into NYC DOF ACRIS to see who the owner is. You can see where the owner's property tax bill is mailed to on DOF's site. Also, you can enter the address into NYC HPD HPDONLINE to check the address and confirm who the registered owner is, see what conditions have been reported in the building, and if any violations are outstanding.
- ***There were important changes to many tenant-landlord rules in 2019. Familiarize yourself: [changes-in-nys-rent-law.pdf](https://www.doh.state.ny.us/rental-law/changes-in-nys-rent-law.pdf).** (we will talk about the 2024 legislation out of Albany later)

Be aware of safely and legality: not the same thing:

You may see a unit that is in a basement (51 +% of the height of the room is above the ground) that may or may not have nearby boiler legally enclosed, or a secondary egress; or an attic room that has no secondary egress; or a unit where someone installed a lock on a bedroom door or put up a wall themselves; illegally subdividing one unit into two. Some illegal rooms and apt units are unsafe and some are not. (But it is never legal to sleep in a cellar.)

Should anyone call 311 to report a potentially dangerous residence, an HPD inspector will come and try to inspect and can have you evicted if you are in an illegal unit. The owner may be forced to tear out the kitchen or bathroom they illegally installed.

You don't legally turn a one family into a two or a two into a three- family home by installing more kitchens and/or adding walls

You can see on the nyc hpd or dob or dof websites how many legal units a building has.

Sample: this address has 54 legal apartment units

The selected address: 359 HENDRIX STREET, Brooklyn 11207

HPD#	Range	Block	Lot	CD	CensusTract	Stories	A Units	B Units	Ownership	Registration#	Class
867636 Active	345-369	03995	0001	5	115200	4	54	-	PVT	377975	E

- Be as financially prepared as possible- consider a roommate who has income who is willing to be on the lease. If necessary, do the work to improve your credit score before you start applying for apts. You can get a free credit report each year from the three credit reporting agencies at <https://www.annualcreditreport.com/index.action>
- The City offers free credit improvement counseling in every borough through the *Ready to Rent* program <https://www.nyc.gov/site/hpd/services-and-information/ready-to-rent.page>
- You can also access free financial counseling around budgeting and saving and resolving debts through the City's Consumer Affairs office) [DCWP - Consumers - Manage Money - Get Free Financial Counseling \(nyc.gov\)](#)
- If your T. household income isn't around 40x the rent (ex.: \$1800 rent: \$72,000 income) and you don't want to add a roommate with an income, you might need to look into getting a co-signer or a guarantor.



- A **Co-signer** on a rental property usually refers to an individual who signs a lease on behalf of someone else. This individual should have good U.S. credit and must have a min. income of 75 or 80 times the monthly rent (in order to pay both your and their own housing expenses). A co-signer is immediately responsible for the rental. A co-signer on a lease might theoretically have the right to live in the apt., but that would depend on the terms outlined in the lease. While a co-signer is responsible for the rent at the moment it is due.....
- a **Guarantor** only has to pay once the person on the agreement fails to do so. A guarantor won't have any right to live in the apt. because they are only going to be liable for anything if the tenant stops paying. A guarantor often refers to an institutional lender who offers a service enabling the renter to qualify for and obtain the apartment. The agreement will usually specify the guarantor is only on the hook "once all legal remedies are extinguished," says it's still important to read the definitions in the lease regardless of what they are called and what you think they mean.
- If you are weighing the risks of one over the other, a co-signer takes on more financial responsibility than a guarantor. A co-signer is responsible for the obligations immediately whereas a guarantor is only responsible for them after some triggering event.
- An example of an institutional guarantor is:
- [Rental Guarantor Service | Renter Information \(insurent.com\)](https://insurent.com)

**Renters have more protections when their apartment is NYS rent regulated.
It is not always obvious, and an owner may not tell you, so look it up for free!**

[Rent Connect-New York State Homes and Community Renewal \(ny.gov\)](https://www.ny.gov/hcr/rent-connect)

[JustFix - Technology for Housing Justice](https://www.justfix.org/)

[Rent Stabilized Building Lists – Rent Guidelines Board \(cityofnewyork.us\)](https://www.cityofnewyork.us/housing/rent-guidelines-board)

[Office of Rent Administration \(ORA\) | Homes and Community Renewal \(ny.gov\)](https://www.ny.gov/hcr/office-rent-administration) 1 833 499 0343



NYS HCR supervises rent-regulated leases

Reach out about reductions in services, renewal leases, questions about legal rent or increases or fees,; anything to do with your rent regulated lease/unit.

Bronx Borough Rent Office

1 Fordham Plaza, 4th Floor
Bronx, New York 10458

Phone: 718-430-0880

Brooklyn Borough Rent Office

55 Hanson Place, 6th Floor
Brooklyn, New York 11217

Phone: 718-722-4778

Lower Manhattan Borough Rent Office

25 Beaver Street, 2nd Floor
New York, New York 10004

Phone: 212-480-6238

Upper Manhattan Borough Rent Office

Adam Clayton Powell, Jr. Office Building

163 West 125th St, 5th Floor
New York, New York 10027

Phone: 212-961-8930

Queens Borough Rent Office and Enforcement Unit

Gertz Plaza
92-31 Union Hall Street, 6th Floor
Jamaica, New York 11433

Phone: 718-482-4041

Westchester County Rent Office

75 South Broadway, 3rd Floor
White Plains, New York 10601

Phone: 914-948-4434

- [NYC Housing Portal](#) – a very useful general. housing site : buy, rent, own, incentives, landlord rules, harassment, homelessness.....
- Concerned about **flood** risk? Interested in flood insurance? many neighborhood are low-lying: [NYC Flood Zones | Flood Risk | FloodHelpNY.org](#)
- There are protected classes against whom an owner can't legally **discriminate (including source of income/voucher holders)**: [Fair Housing - CCHR \(nyc.gov\)](#)
- Considering **renters insurance**? Read the fine print of what is included /excluded https://dfs.ny.gov/consumers/help_for_homeowners/renters_tenants/renters_insurance
- Thinking that you can afford the monthly cost of coop condo or house **ownership** but need help with **down payment**? Some coop units around the City are competitively priced! [Available Apartments - UHAB % | UHAB](#)
- [HomeFirst Down Payment Assistance Program - HPD \(nyc.gov\)](#): To qualify for a forgivable loan with **HomeFirst**, the prospective homebuyer must meet many criteria: First-Time Homebuyer is defined as a household that has not owned a home during the three-year period immediately prior to the purchase of a primary residence, in NYC only, home must pass a condition inspection, the loan evaporates over time, household Income up to 80% AMI (which is a max income of approx. \$136K for a one person household) Check the hpd website for details and other family size income max parameters. Also look at other such programs including NACA, NY State's mortgage asst. program [State of New York Mortgage Agency \(SONYMA\) for Homebuyers | Homes and Community Renewal](#) your union, your bank, any bank, your credit union.....

SECURITY DEPOSITS AND PRE-PAID RENT ARE LIMITED TO ONE MONTH'S RENT

Although security deposits have long been limited to one month's rent for rent-stabilized tenants, on June 14, 2019, the law was amended to extend this limit to unregulated tenants statewide. The practice of requiring pre-paid rent, typically as the "first and last months' rent," is now prohibited.

NOTICE OF RENT INCREASES:

The [Housing Stability & Tenant Protection Act \(HSTPA\) of 2019](#) requires landlords to provide tenants with written notice if they intend to raise the rent by at least 5% or if the landlord decides not to renew your lease. Specifically: If a tenant has occupied the unit for less than 1 year, or does not have a lease term of at least 1 year, a 30-day notice is now mandatory.

A 60-day notice is required for tenants who have lived in an apartment for more than one year, but less than two years, or have a lease of at least one year, but less than two years.

Tenants who have lived in a unit for more than two years, or have a lease of at least two years, must get a 90-day notice.

According to NYS Attorney General's [Changes in New York State Rent Law: What You Need to Know](#):

If your landlord does not provide you with the required written notice, you have the right to remain in the apartment at your current rent until you are given the written notice and the time period that applies to you of 90, 60, or 30 days, expires.

Brokers fees: The Fairness in Apartment Rental Expenses (FARE) Act is a new law that took effect on June 11, 2025. **This law prohibits brokers who represent landlords from charging broker fees to tenants.** This includes brokers who publish listings with the landlord's permission. Landlords or their agents must disclose other fees that the tenant must pay in their listings and rental agreements.

The NYC Dept of Consumer and Worker Protection (DCWP) will enforce this law. Any person who violates this law would be subject to a civil penalty or civil action.

- **Application fee:** The application fee for a rental is capped at \$20. This is separate from the broker fee and covers the cost of a background or credit check. Confusion about this fee has prompted the NYS HCR to issue guidelines ([fact-sheet-44-12-2022.pdf \(ny.gov\)](#)) confirming this is the only fee a landlord can charge a tenant, and that this is also the maximum brokers can charge for an application fee. If you provide current copies of a background or credit check, the law states this fee must be waived.

- if you are looking to rent in a condo or co-op building rather than a rental building, there may be additional fees charged by the board as a result of the building's specific sublet policies.

RENT STABILIZED APT INCREASES/RENT GUIDELINES BOARD

“These rent adjustments will apply to rent stabilized apartments with leases commencing on or after **October 1, 2024** and through **September 30, 2025**. Rent guidelines for loft units subject to Section 286 subdivision 7 of the Multiple Dwelling Law are also included in this order.

ADJUSTMENT FOR LEASES (APARTMENTS)

Together with such further adjustments as may be authorized by law, the annual adjustment for leases for apartments shall be:

- For a **one**-year lease commencing on or after **October 1, 2024** and on or before **September 30, 2025**: **2.75%**
- For a **two**-year lease commencing on or after **October 1, 2024** and on or before **September 30, 2025**: **5.25%**

These adjustments shall also apply to dwelling units in a structure subject to the partial tax exemption program under Section 421-a of the Real Property Tax Law, or in a structure subject to Section 423 of the RPTL as a Redevelopment Project.

For a one -year lease commencing on or after October 1, 2025 and on or before September 30, 2026 :	3%
For a two -year lease commencing on or after October 1, 2025 and on or before September 30, 2026 :	4.5%

- See the rent guidelines board website for details [Rent Guidelines Board \(cityofnewyork.us\)](https://cityofnewyork.us/rent-guidelines-board)

- **Let's go look at that apartment:**
- **If possible, talk to other tenants:** hearing directly from tenants is your most reliable source of intel. Arrive 20 minutes early for a viewing and talk to people you see in the lobby or walking in and out of the building. Ask them what it's like to live there: How's the landlord? Does the management company respond quickly to maintenance requests? (look up the address on [HPDOnline – Home](#) to see complaints and open violations.) Do residents' packages get stolen? Go to the block at night – ideally in dry warm weather- and see what is or is not happening
- **Bring your documents:** If you like the apartment, you'll want to apply right away. The landlord or broker will ask for various documents, which may include a copy of your most recent W-2, pay stubs, and reference from previous landlords

HPD/HDC Marketing: Asset Limits and Property Ownership Policies : 2025 Asset Limits

There is a limit to the amount of total assets an applicant household may have and remain eligible for affordable housing. Household assets include financial assets such as savings accounts, checking accounts, trusts, investment assets (stocks, bonds, etc.), cash savings, miscellaneous investment holdings, etc. (Balances in specifically designated retirement funds and college savings accounts are not subject to the asset limit, but are counted when calculating income from assets.) The entire market value of any interest in real property is subject to the asset limit (e.g. residential, commercial, land, shares in a co-op, etc.). For other capital investments, only the applicant's equity in the investment is subject to the asset limit.

Applicants to Rental Units: The household asset limit for rental units is equal to the maxi income limit for a four (4)-person , household at the AMI level for which the unit is designated.

AMI Level Asset Limit

30%	\$48,600
40%	\$64,800
50%	\$81,000
60%	\$97,200
70%	\$113,400
80%	\$129,600
90%	\$145,800
100%	\$162,000

Applicants to Homeownership Units: The household asset limit for all homeownership units is equal to the HUD maximum income limit for a four (person household at 175% of the Area Median Income (AMI). Effective April 1, 2025, the household asset limit for applicants to homeownership units is \$283,500.

Applicants to Rental Units: No member of the applicant 's household may own resi. property, including co-op shares, in /within 100 miles of NYC limits.

Applicants to Homeownership Units No member of the applicant's household may own, or have previously purchased, any interest in resi.real property.

For the full policies, see HPD-HDC Marketing Handbook, Section 5-5 B and C

- **The NYC HPD HomeFirst Down Payment Assistance Program provides qualified homebuyers with up to \$100,000 toward the down payment or closing costs on a 1-4 family home, a condo, or a coop in any borough.**

Some of the regs. are: Be a first-time homebuyer, complete a homebuyer education course taught by an HPD-approved counseling agency, and work with an HPD approved Housing Counseling Agency to complete a HomeFirst Loan Application ([Required documentation can be found here](#)). The borrower must provide a minimum downpayment or contract deposit of at least 3% of the total purchase price sourced from their own funds, towards the home purchase. Purchase a 1-4 unit family home, a condominium, or a cooperative for owner-occupancy in one of the five boroughs of NYC. Pass a Housing Quality Standards (HQS) inspection before purchase. Live in the home for at least: 10 years if the loan received is less than or equal to \$40K and 15 years if the loan is greater than \$40K. For City-funded loans, owner occupancy period is 15 years regardless of loan amount.

• Family Size	Max. Household Income up to 120% AMI
• 1 – Person Household	\$136,080
• 2 – Person Household	\$155,520
• 3 – Person Household	\$174,960
• 4 – Person Household	\$194,400
• 5 – Person Household	\$210,000
• 6 – Person Household	\$225,600
• And more	

What You Need to Know About New York's Good Cause Eviction (GCE) Law- *slide 1*

On April 20, 2024, a law went into effect that protects some tenants from huge rent increases and requires a landlord to have a good reason for evicting a tenant.

Who does the new law protect? You are covered if: you do *not* live in a condo or co-op building, your building was built before 2009 and was not substantially rehabbed after 2009, you live in a building with 11 or more apts, (if you live in a building of 10 units or fewer you may still be covered but your landlord would have to own another building or buildings,) your landlord does not live in your building, your rent is *under* 245% of the "Fair Market Rent "(Studio: \$5,846, 1 BR: \$6,005, 2 BR: \$6,742, 3 BR: \$8,413, 4 BR: \$9,065); you do not live in your apt as part of your employment agreement, you do not have a holdover case against you that was started before 4-20-24.

Do these protections apply to anyone else? Yes. *Many tenants in NYC already have the rights found in this new law.* If you are rent regulated, living in NYCHA or a Federally subsidized or Affordable development, your landlord can only evict you for a good reason and there are limitations on how high your rent will increase. Because you already have protections, you are not covered by GCE.

Does the new law apply to small landlords? No. The law does not cover small landlords (a landlord who owns 10 or fewer units of housing.) A unit of housing is an apt or a single-family house. You can find how many apts and houses your landlord owns (whoownswhat.justfix.nyc)[here](#). *If your landlord lives in your building and the building has 10 units or fewer, you are not covered.*

Rent increases have been limited.: New rent increases can be between 5% and 10% based on a formula that takes into account inflation; this is called the *reasonable rent increase*. The state housing agency will have to publish each year's reasonable rent increase by August. As of February 19, 2025, the rate of inflation for the New York City area is 3.79%, meaning that the current local rent standard is 8.79%, therefore, a rent increase of more than 8.79% could be found unreasonable by the court.

Landlords can increase the rent more than the reasonable rent increase, but they must explain why, and must point to increases in their costs or substantial repairs they did to the apartment or building. If your landlord increases your rent to more than the reasonable rent standard, it is a defense to a non-payment of rent case that your rent was set higher than the reasonable rent increase.

What You Need to Know About New York's Good Cause Eviction Law- *slide 2*

Landlords must show "good cause" to evict you.

Before this law, unregulated tenants could be evicted at the end of their lease. Many tenants do not have leases, they are month to month (MTM) tenants. MTM tenants could be evicted if their landlord gave them a notice telling them to get out. Landlords did not have to give a reason to evict.

Now, if you are covered by the law, *you can still be evicted for the following reasons*: Non-payment of rent;

Violating a substantial obligation of your lease by reasons such as operating a business out of your apt, making alterations to your apt without permission, using appliances such as washing machines that are prohibited in your lease, failure to provide reasonable access to your apt for repairs or for your landlord to show the apt for rent or sale, being a nuisance, illegal activity such as selling drugs, constant noise coming from the apt, violent behavior, cluttering your apt to the point that it is a hazard, paying your rent late on a chronic basis

•Limited landlord actions: owner-use (landlord's personal use or that of a family member,) landlord taking the apt off the market, the whole building being torn down, failure to sign a lease renewal

Will I be notified if these new protections apply to me?

Yes. Your landlord will have to give you information so that you know if you are covered by this law. These notices will have to be included in your leases and in any court notices or papers.

If your landlord says that you are not covered by this law because he is a small landlord, your landlord must tell you what other buildings he owns and what their addresses are. If your landlord is an LLC/corporation, your landlord must give you the names of the people behind the LLC/corporation and list the other buildings they own. If your landlord does not follow the new notice rules, he will lose in court. You can look up your landlord or your building at WhoOwnsWhat (Just Fix's) website [here](#). The new notice requirements started Aug 20, 2024.